Subject: URGENT: Retaliatory Violation Notice & Hearing; Evidence for Immediate Demand Letter & Case File

Dear Barbara,

Thank you for your follow-up. A critical new development requires your immediate attention. The Association has escalated its actions by issuing a baseless and procedurally flawed "Notice of Violation" against me, dated August 8, 2025. This notice is clearly retaliatory, and I have irrefutable evidence to dismantle its central claims.

This email will first address this urgent new matter, then provide the detailed summary of facts and evidence for both the immediate demand letter to cease all collection and enforcement actions. I have gathered the requested information and am providing a comprehensive summary of the facts, with references to supporting documents, to assist with the immediate demand letter regarding the improper collection action by Chestnut Cambronne, and to serve as a foundation for our broader case.

Direct Answers to Your Questions

- **Collections & Blocked Payments:** The law firm is Chestnut Cambronne, PA. Their collection notice dated July 29, 2025 is attached as Exhibit 15. This action was initiated after the HOA, now managed by Gassen Management, blocked my ability to pay my monthly assessments via the owner portal. This prevented me from staying current on undisputed fees while I was disputing other charges. The email from Chestnut Cambronne (Exhibit 23) confirms they do not accept online payments, creating this impasse. My account ledger (Exhibit 17) shows they are charging late fees on this manufactured delinquency. Documents were attached in my Aug 12th email.
- **Reserve Study:** The 2021 Building Reserves Study (Exhibit 7) is the most recent study. I have requested a new study be done many times, especially before the balcony project and certainly before our contract with FSR ended, as they were contractually obligated to assess the study. It explicitly recommends an update every 2-3 years. The Board failed to commission a new study and proceeded with a $1.5M+ project based on outdated data.
- **Special Assessment Documents:** I have attached the Special Assessment Notice from FSR dated May 23, 2024 (Exhibit 8) and the per-unit cost breakdown (Exhibit 5). The notice clearly states owners who did not pay in full by July 10, 2024, would be automatically enrolled in a 10-year loan facilitated by FirstService Financial.
- **Burst Pipes Insurance Claim:** Regarding the burst pipes from the February 14, 2025 incident, I have not filed a claim with my personal insurer. The failure was of a pipe in the wall, which is a Limited Common Element (LCE) under the Association's maintenance and insurance responsibility per Article IX and Article X of the Declaration (Exhibit 2). This was the direct cause of the heating emergency call. The resulting interior damage is a direct consequence of this failure. The pipe was in the wall next to

the exterior wall with improper insulation. The Board has ignored their duty and has instead improperly billed me for the emergency call and repairs, as detailed below. I am awaiting your guidance on this.

Part 1: The Retaliatory Violation Notice (New Urgent Matter)

On August 8, 2025, I received a "Notice of Violation" from the Association's legal counsel, Chestnut Cambronne (Exhibit 12). To be clear, it appears an unfortunate and embarrassing accident involving my dog did occur on my balcony. I was completely unaware of it until receiving this letter, at which point I immediately cleaned the area and wrote a letter of apology to my downstairs neighbor, who I believe was also unaware of the situation until this legal action.

However, the Association's response has been to levy multiple, redundant fines for a single, accidental incident, and to include a charge that is demonstrably false.

1. **The $100 Fine for "Failure to have Pet Registration on File" is Fraudulent:** This fine is based on a known administrative error. I submitted the Pet Registration Form (Exhibit 13) on September 27, 2022. When FSR mistakenly sent me a notice about this in 2022, their manager, Lisa Murphy, acknowledged the error in an email dated October 25, 2022 (Exhibit 15), stating: "We did not realize this information was sent in, our apologies. We will pull the letter from mailing and delete it from the file." My pet has been properly registered for nearly three years. Re-levying this fine is an act of bad faith.
2. **The Association Violated Its Own Mandatory Complaint Procedure:** The Summerhill Rules & Regulations, Section XIV.A (Exhibit 18), requires that a complainant first "attempt to obtain voluntary compliance without official intervention." I was never contacted by the affected resident, management, or any Board member. This attorney's letter was the first and only notice. This procedural failure denied me any opportunity to remedy the situation amicably and is a direct violation of their own rules.
3. **The Board Has Issued an Improper Hearing Notice:** The hearing notice from Gassen's manager (Exhibit 16) provides only three business days' notice. This contradicts the violation letter from their own legal counsel (Exhibit 12), which states I will be "provided at least ten (10) days' notice of the Hearing."
4. **Willingness to Pay for Actual Damages:** I take responsibility for the accident and am willing to pay for the actual, reasonable cost of repairs. However, the Board is demanding $800 without providing a detailed, itemized quote, which I have formally requested.

This entire violation notice is a textbook example of harassment. They are "stacking" multiple violations for one incident and fabricating others to intimidate me for asserting my rights.

Part 2: Summary of the Broader Case & Evidence for Demand Letter

This aggressive and procedurally flawed approach is consistent with the Board's handling of the larger financial matters that are the root of this dispute.

A. Collections Based on a Manufactured Delinquency

- My account has been sent to collections because I have been blocked from paying my regular monthly assessment of $596.00.
- The Association attorney Ms. Schellhas's claim that payments are not applied to specific components (Exhibit 23) is directly contradicted by both my account ledger history, which shows specific monthly payments, and the Rules & Regulations (Section IV.B.4) which explicitly defines a payment application priority. They have created a situation where I cannot pay current dues without first paying disputed charges, manufacturing a delinquency to justify collections and additional fees.

B. Gross Negligence & Breach of Contract Leading to the Special Assessment

The balcony project was necessitated by years of Board and management negligence.

Failure to Act on the 2021 Reserve Study (Exhibit 7): The study recommended a funded plan for balcony repairs, not a full replacement. The Board failed to perform these timely repairs, allowing the problem to worsen. This is negligence.

Fundamental Incompetence: The Board ignored the 2021 Reserve Study's #1 critical priority: the Cedar Shake Roofs. See attached photo of the moss on the roof of the president's own building's front door.

Continued Incompetence: The "Responsibility Matrix" (Page 1-8) incorrectly lists balconies as an "Owner" responsibility—a direct contradiction of our Declaration. This demonstrates a fundamental and multi-year lack of understanding of their own governing documents by the Board and its vendors.

Failure to Enforce Owner Responsibility: The rot on some balconies developed over years due to owner neglect (e.g., unmaintained planters). The Declaration (Article IX, Exhibit 2) allows the Association to assess costs to a specific owner for damage that they have "allowed to exist." The Board failed to do so, instead socializing the costs across all members.

FSR's Breach of Contract: The FSR Management Agreement (Section 4.2) (Exhibit 3) contractually obligated FSR to assist in obtaining a reserve study update. They failed to do this, and the Board proceeded with a $1.5M+ project using outdated data.

Contradiction of Engineering Recommendations & Factual Evidence

The Board's decision for a blanket replacement contradicts the findings of their own engineering report from Encompass.

The Report: Section 3.3.2 of the Encompass Report explicitly states, "Partial or full replacement...will be required. The scope of repairs will vary by location based on the extent of damage."

The Board's Action: The Board ignored this recommendation for a varied, needs-based approach. They instead chose the most expensive option, which was steered aggressively using fear-mongering and lies about building codes stating that if you replace one balcony, you have to replace them all. The greater the cost of the project, the more the Agent and FSR stand to make.

My Unit: I have documentation for my own deck, including an assessment from a third-party contractor and correspondence with Duke Johnson from the Bloomington Department of Building Inspections. He confirmed that what the President and Manager Lisa Murphy from FSR claimed about the building code was inaccurate. He was aware of the situation at Summerhill condos and signed the building permits for the construction company. He is the one who advised me to get a third-party contractor to look at my balcony, as Mr. Johnson also questioned why the project was not being done in phases.

C. Undisclosed Conflicts of Interest & a Pattern of Deceptive Practices

The 5% Fee & The Loan: The FSR Management Agreement (Section 3.2.7) (Exhibit 3) guaranteed FSR a 5% fee ($75,000+) on the project, and the loan was facilitated by their subsidiary, FirstService Financial (Exhibit 8). This was a massive, undisclosed conflict of interest.

The "Roofing Project" Letter & FSR's Public History: The letter from the HOA's attorney, Gretchen Schellhas, dated May 15, 2024 (Exhibit 19), concludes by thanking residents for their patience during the "roofing project." This is not a typo. It is alarmingly similar to recent news reports of another FSR-managed HOA in Lakeville, where homeowners are suing over a multi-million dollar roof replacement they allege was unnecessary. (See KSTP News Report: https://kstp.com/kstp-news/top-news/it-was-shocking-to-get-that-notice-attorney-for-homeowners-in-lakeville-sue-their-own-hoa/). This suggests a pre-packaged, predatory strategy, not a process tailored to our community's needs.

D. The Financial Harm and Lack of Transparency

I was forced to liquidate my 401k to cover this assessment (Exhibit 9). I have a cashier's check ready (Exhibit 10) but have rightfully withheld it pending the financial transparency required by MN Statute § 515B.3-118. The Board has refused to provide a final accounting of the project, including the use of the $132,100 contingency fund (Exhibit 4).

Conclusion & Requested Action

This situation has caused me extreme distress and financial hardship. I am being targeted for demanding the accountability that I am legally entitled to.

I request that the demand letter be expanded to address these latest retaliatory actions. It should demand:

1. Immediate dismissal of the demonstrably false fine for pet registration and the redundant, procedurally improper fines related to the single, accidental pet incident.
2. Immediate cessation of all collection activities.
3. Immediate removal of the improper $1,585.00 emergency fee and all associated late fees.
4. Provision of a proper, 10-day written notice for any future hearing.
5. Compliance with my outstanding records requests for the Gassen contract and full balcony project financials.

I am ready to proceed and appreciate your help in fighting this.

Sincerely,
Gerald Jackson

List of Exhibits (For Your Reference)

Exhibit 1: Board Mins (Feb 25 2025) - Board votes to pay Gerald's emergency fee.
Exhibit 2: Summerhill Declaration - Defines Assoc. maintenance duties.
Exhibit 3: FSR Management Agreement - Shows 5% fee & reserve study duty.
Exhibit 4: Paragon Bid Summary - Shows contingency fund & project costs.
Exhibit 5: 2024 Special Assessment Per-Unit Breakdown.
Exhibit 6: Encompass Engineering Report - Recommends varied scope.
Exhibit 7: 2021 Reserve Study - Shows roof as #1 priority & incorrect balcony responsibility.
Exhibit 8: FSR Special Assessment Notice (May 23 2024) - Details loan via FSR Financial.
Exhibit 9: 401k Withdrawal Statement - Shows personal financial damages.
Exhibit 10: Cashier's Check for Assessment - Proof of funds withheld pending transparency.
Exhibit 11: Email Chain with Neighbors - Shows support & Board stonewalling.
Exhibit 12: Chestnut Cambronne Violation Notice (Aug 8 2025) - The retaliatory pet violation.
Exhibit 13: Pet Registration Form (Sept 27 2022) - Proof of prior registration.
Exhibit 14: Medical Provider Letter for Service Animal.
Exhibit 15: Email from Lisa Murphy/FSR (Oct 25 2022) - Admits error & confirms pet registration.
Exhibit 16: Hearing Notice from Gassen (Aug 19 2025) - Shows improper short notice.
Exhibit 17: Gassen Account Ledger - Shows improper charges.
Exhibit 18: Summerhill Rules & Regulations - Shows complaint procedure & payment priority.
Exhibit 19: Chestnut Cambronne Letter (May 15 2024) - Mistakenly refers to "roofing project".
Exhibit 20: Formal Dispute Letter (sent to Gassen Apr 28 2025).

Exhibit 21: Letter Requesting Hearing for Pet Violation (Aug 18 2025).

Exhibit 22: Draft Response to Board for Hearing.

Exhibit 23: Email Exchange with G. Schellhas re: Payment (Aug 15 2025).